

agreement to withdraw the controversy from arbitration, however, ***no other judicial act is authorized.***” (*Ibid.* emphasis added.)

While the motion for leave to amend is unopposed, the Court is without jurisdiction to rule on the motion as the matter has been ordered to arbitration. Plaintiffs attempted to have that order set aside, but that motion was denied.

Conclusion

Plaintiffs’ motion is **denied** as this matter has been ordered to proceed in arbitration.

2. 9:00 AM CASE NUMBER: C24-00779
CASE NAME: MOORE OKEH VS. HARDEEP SINGH
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS
FILED BY: SINGH, HARDEEP
TENTATIVE RULING:

Before the Court is Plaintiffs Moore N. Okey and Irene London’s Motion to Expunge Lis Pendens.

The Court continues the hearing on this motion to **March 6, 2026**, to allow for additional briefing by the parties as to whether the Court has jurisdiction to hear this matter, as outlined below.

Procedural Background

Plaintiffs filed their initial complaint on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association (“U.S. Bank”) filed a motion to compel arbitration. On May 2, 2025, the Court issued a minute order granting the motion to compel.

Thereafter, on May 28, 2025, Plaintiff filed a Notice of Lis Pendens. Defendant Hardeep Singh filed the instant motion to expunge the lis pendens on October 2, 2025. The Court set the hearing on the motion for February 6, 2026. Plaintiffs filed their opposition on January 22. Defendant Singh filed his Reply on January 26, 2026.

Analysis

The Court notes that the Parties papers only address the substantive aspects of the motion to expunge. Neither party discusses the impact of the order compelling arbitration or the Court’s jurisdiction to hear this motion based on that order.

Initially, it appears that a motion to expunge a lis pendens can only be heard by the Court and not the arbitrator. First, a “lis pendens may only be recorded when an action is pending in state or federal court.” (*Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1051 citations omitted.) To obtain an expungement order, “any time after notice of pendency of action has been recorded, any party ... may apply **to the court** in which the action is pending to expunge the notice.” (Cal. Code Civ. Proc. § 405.30 emphasis added.) The motion to expunge is “confine[d] ... **to the court** where ‘the action’ of which notice has been recorded is pending” (*The Formula Inc. v. Superior*

Court (2008) 168 Cal.App.4th 1455, 1464 emphasis added.)

The above authority appears to dictate that the Court, and not the arbitrator, may rule on the motion to expunge. However, “[o]nce a trial court has compelled claims to contractual arbitration, the court has ‘very limited authority with respect to [the] pending arbitration.’” (*Lew-Williams v. Petrosian* (2024) 101 Cal.App.5th 97, 105, citations omitted.) Once a motion to compel is granted and the matter stayed, “the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration.” (*Titan/Value Equities Group Inc. v. Superior Court* (1994) 29 Cal.App.4th 482, 487 “*Titan*”.)

“During that time, under its ‘vestigial’ jurisdiction, a court may: [1] appoint arbitrators if the method selected by the parties fails (§ 1281.6); [2] grant a provisional remedy ‘but only upon the ground that the award to which an applicant may be entitled may be rendered ineffectual without provisional relief ‘ (§ 1281.8, subd. (b)); and [3] confirm, correct or vacate the arbitration award (§ 1285).” (*Ibid.*) “Absent an agreement to withdraw the controversy from arbitration, however, **no other judicial act is authorized.**” (*Ibid.* emphasis added.)

Once the matter is sent to arbitration, it “is the job of the arbitrator, not the court, to resolve all questions needed to determine the controversy.” (*Titan*, supra, 29 Cal.App.4th at 487-88.) This would include determining whether a valid property claim is being asserted and whether Plaintiffs are likely to prevail thereon.

It is clear the motion to expunge does not relate to [1] appointing an arbitrator or [3] confirming, correcting, or vacating an award. With respect to the Court being allowed to grant a ‘provisional remedy’ under 1281.8, subdivision (b), section 1281.6, provides a list of actions which are deemed ‘provisional remedies.’ This list does not include a motion to expunge a lis pendens. While a lis pendens may be a ‘provisional remedy’ in other contexts, “it is not mentioned in this statute.” (*Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1054.) “Even if [the Court] ignore[d] the specific limiting language of the statute ... [t]he provisional remedies envisioned by section 1281.8 are of the kind ‘designed to enable the plaintiff in a civil action to protect against dissipation of property by the defendant during the pendency of the action, with consequent loss of the benefits of a judgment.’” (*Ibid.*) “Under the principle of *ejusdem generis* (literally, ‘of the same kind’) [citation], the statute does not anticipate or allow for the expungement of a lis pendens.” (*Ibid.*)

The Court acknowledges that the procedural posture in *Manhattan Loft, LLC* is different from this case, but the reasoning and rationale still appear to apply. While the Court must rule on a motion to expunge, it is unclear whether the Court has authority to do so while the arbitration is pending.

Based on the above, it is unclear to the Court whether it has jurisdiction to rule on the motion to expunge – at least prior to such time as the arbitration is at an end, or the matter is remanded to the Court on some other basis. However, since neither party addressed this issue in their papers, the Court would like to give the parties an opportunity to brief the matter.

On a related note, when a court has ordered the parties to arbitration, “the court in which such action or proceeding is pending shall, upon motion of a party so such action or proceeding, stay the action or proceeding until an arbitration is had” (Code Civ. Proc. § 1281.4.) While the Court granted the

unopposed motion to compel arbitration on May 2, 2025, Defendants did not request and the Court did not issue a stay of this matter pending resolution of the arbitration. The parties should address whether the lack of the issuance of a stay impacts the Court's jurisdiction to rule on this motion.

Conclusion

Defendant Hardeep Singh's motion to expunge is continued to allow for additional briefing. The Court Orders as follows:

- The hearing on this matter is continued to **March 6, 2026**.
- Both parties are to file a brief addressing the Court's jurisdiction to hear the motion to expunge the lis pendens during the pendency of the arbitration – addressing the issues outlines above – by 4:00 p.m. on **Friday, February 20**.
- The parties' briefs are limited to 10 pages.

There will be no opposition or reply papers. No additional substantive briefing should be submitted.

3. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF 1ST AMENDED CROSS COMPLAINT**
FILED BY: DORESE, ALYSS
TENTATIVE RULING:

Continued by the Court to March 13, 2026.

4. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
HEARING ON DEMURRER TO: RE 1ST AMENDED CROSS-COMPLAINT
FILED BY: SHAHI, GOVIND K.
TENTATIVE RULING:

This matter is dropped from calendar per the request of the moving party.

5. 9:00 AM CASE NUMBER: C25-00197
CASE NAME: MICHAEL REDONDO VS. CONCORD POST ACUTE CARE
HEARING ON DEMURRER TO: RE 2ND AMENDED COMPLAINT
FILED BY: SYCAMORE HEALTHCARE ASSOCIATES DBA LEGACY POST ACUTE CARE
TENTATIVE RULING:

The case is stayed pending arbitration. Please see Line 6.